4690

Executive Order

Repealed 1940 CAR 138

Article XXII of the Consular Regulations of 1896 is hereby canceled and the following substituted therefor:

ARTICLE XXII

Immigration and Quarantine

361. To assist in enforcing immigration laws.—Specific duties are placed upon consular officers in connection with the enforcement of the immigration laws and regulations of the United States, and, in general, they are required to assist in such enforcement. To this end consular officers should familiarize themselves thoroughly with the existing laws of the United States on the subject of immigration, and with the rules and regulations established thereunder by the Secretary of Labor, or other officials acting in the name of the President.

The Secretary of State issues such instructions to consular and diplomatic officers as may be necessary. Such instructions are a part of these Regulations.

362. To report violations of laws.—It is the duty of consular officers to report to the Department of State all information possible which might be of value in preventing violation of the immigration laws and rules. When the exigency seems to be sufficient, the consular officer will employ the cable in communicating to the Department of State, or, in an emergency, directly to the immigration officials at the port of the United States concerned, information which it is believed will prevent a violation of the law.

It is also the duty of consular officers to report to the Department of State at once all violations of the law regulating the transportation of immigrants by sea by masters of vessels bound to any port of the United States.

363. Canceled.

364. Aliens who must bear passports when entering the United States, its insular possessions, or the Canal Zone.—The President has prescribed, by Executive order, rules concerning the documentation required of aliens entering the United States, its insular possessions, or the Canal Zone. The documentation of alien immigrants entering the continental United States, Alaska, Hawaii, Porto Rico, and the Virgin Islands, is governed by statute.

365. Canceled.

366. Diplomatic visas.—Diplomatic visas may be granted only by the diplomatic missions of the United States, and only to holders of passports distinctly marked by the government issuing them as diplomatic passports (*passeport diplomatique*). A diplomatic visa should not be granted to holders of special passports, or to holders of other documents in the nature of special passports. Such other passports or documents should be visaed in the manner prescribed in the instructions of the Secretary of State.

367. Canceled.

Chinese Immigration

368. Admissible Classes.—Only such persons of the Chinese race as are admissible under the provisions of the treaty between the United States and China, signed on November 17, 1880, the Chinese exclusion laws, the immigration laws, and the Executive order of February 6, 1917, No. 2526, relating to the exclusion of Chinese from the Panama Canal Zone, are allowed to enter the United States or territory under its jurisdiction.

369. Canceled.

370. Canceled.

371. Canceled.

372. Documents and Visas.—Diplomatic and consular officers, except consular agents, are required to visa and issue to Chinese of the admissible classes such documents as are prescribed by Executive orders, the laws, rules and regulations governing the admission of Chinese. Before granting the required visa, the officer must conduct such an investigation as will enable him to decide with confidence

whether the applicant for visa is admissible into the territory that he desires to enter. If the officer should find that the applicant is for any reason inadmissible thereto, the visa should be refused.

373. Canceled.

374. Canceled.

Quarantine Regulations

375. Certain powers and duties are given consular officers by the Quarantine Act of February 15, 1893, which provides, among other things, as follows:

(a) *Bill of health to be obtained from consul.*—Any vessel at any foreign port clearing for any port or place in the United States shall be required to obtain from the consul, vice-consul, or other consular officer of the United States at the port of departure, or from the medical officer where such officer has been detailed by the President for that purpose, a bill of health, in duplicate, in the form prescribed by the Secretary of the Treasury, setting forth the sanitary history and condition of said vessel, and that it has in all respects complied with the rules and regulations in such cases prescribed for securing the best sanitary condition of the said vessel, its cargo, passengers, and crew.

(b) *Contents.*—Said consular or medical officer is required, before granting such duplicate bill of health, to be satisfied that the matters and things therein stated are true.

(c) *Fees of consul.*—For his services in that behalf he shall be entitled to demand and receive such fees as shall by lawful regulation be allowed, to be accounted for as is required in other cases.

(d) *Medical officer may be detailed at consulate.*—The President, in his discretion, is authorized to detail any medical officer of the Government to serve in the office of the consul at any foreign port for the purpose of furnishing information and making the inspection and giving the bills of health hereinbefore mentioned.

(e) *Penalty for vessel clearing without bill of health.*—Any vessel clearing and sailing from any such port without such bill of health, and entering any port of the United States, shall forfeit to the United States not more than $5,000, the amount to be determined by the court, which shall be a lien on the vessel, to be recovered by proceedings in the proper district court of the United States.

(f) *Proceedings.*—In all such proceedings the United States district attorney for such district shall appear on behalf of the United States; and all such proceedings shall be conducted in accordance with the rules and laws governing cases of seizure of vessels for violation of the revenue laws of the United States.—*27 Stat. L., 450, sec. 2.*

(g) *To be posted in consulate.*—None of the penalties herein imposed shall attach to any vessel or owner or officer thereof until a copy of the Quarantine Act, with the rules and regulations made in pursuance thereof, has been posted up in the office of the consul or other consular office of the United States for ten days in the port from which said vessel sailed, and the certificate of such consul or consular officer over his official signature shall be competent evidence of such posting in any court of the United States.—*27 Stat. L., 450, sec. 3.*

(h) *Sanitary reports to be made by consuls.*—The consular officers of the United States at such ports and places as shall be designated by the Secretary of the Treasury shall make to the Secretary of the Treasury weekly reports of the sanitary condition of the ports and places at which they are respectively stationed, according to such forms as the Secretary of the Treasury shall prescribe.—*27 Stat. L., 451, sec. 4.*

(i) *Rules for vessels from foreign ports.*—The same Act also provides that the Secretary of the Treasury shall make such rules and regulations as are necessary to be observed by vessels at the port of departure and on the voyage, where such vessels sail from any foreign port or place to any port or place in the United States, to secure the best sanitary condition of such vessel, her cargo, passengers, and crew, which shall be published and communicated to and enforced by the consular officers of the United States.—*27 Stat. L., 451, sec. 3.*

376. *Treasury regulations adopted.*—In pursuance of the authority conferred by the foregoing law the Secretary of the Treasury has made regulations for the guidance of the officers charged with the execution of the law in foreign ports and in those of the United States. The provisions of the current edition of the Quarantine Laws and Regulations of the United States as they stand and as they may from time to time be revised or amended, are, so far as they impose duties on consular officers, hereby made a part of the Consular Regulations.

377. *Expense of execution.*—The expense of visiting vessels, making inspections, and any other necessary expense actually incurred by consular officers in the execu-

tion of the quarantine laws and regulations must be paid by the ship or by the person for whom the services are performed. The expense of visiting, the fees for inspection, the hire of an expert where necessary to make an inspection and report, are legitimate charges under this head. These charges must be limited to the actual and necessary expenses so incurred. The consul is not authorized to make any profit whatever out of these official services. His time and labor are paid for by the Government, and the services are purely official.

378. *Official fees.*—The official fees prescribed in the Tariff of Consular Fees for the formal services of certification must be collected in addition to the expenses, and must be accounted for to the Treasury.

379. *Outbreak of disease reported by cable.*—The outbreak in epidemic form of any disease classified as quarantinable, or as a dangerous contagious disease, by the Quarantine Laws and Regulations of the United States, which are a part of these Consular Regulations, must be immediately reported to the Department of State by telegram.

380. *Forms.*—The forms prescribed by the Secretary of the Treasury for use by consular officers in executing the quarantine regulations may be obtained by application to the Department of State as for other forms.

Records.—Copies of all bills of health must be kept at the consulate as a record and shall not be destroyed except upon express authorization from the Department of State.

CALVIN COOLIDGE

THE WHITE HOUSE,
July 11, 1927.

[No. 4690]

U. S. GOVERNMENT PRINTING OFFICE: 1927